

SERVICES AGREEMENT

Between

NextUp Sport (Pty) Ltd, registration number 2026/106524/07, a private company incorporated under the laws of the Republic of South Africa, with its registered address at 28 Albatross Drive, Johannesburg, Gauteng, 2191 ("**NextUp**" / "**the Service Provider**")

and

Northcliff Eagles, of 1 Fir Drive, Northcliff, Johannesburg, 2195, represented by its owner **Paul Goldhawk** ("**the Club**")

each a "**Party**" and together the "**Parties**".

Effective Date: 04/06/2026

Background

A. NextUp owns and operates a mobile application for managing pickleball leagues, including check-in, partnership formation, match assignment, scoring and related features (the "**App**").

B. The Club runs pickleball league nights and wishes to use the App to manage those league nights.

C. The Parties wish to record the terms on which NextUp provides the App to the Club and on which the Club pays NextUp a share of league-night fees.

The stable terms of the relationship are set out in this Agreement. The commercial terms (the fee and how it is calculated and paid) are set out in **Schedule 1**, which may be replaced from time to time by written agreement without amending the rest of this Agreement.

1. Definitions

1.1 "**App**" means the NextUp mobile application (iOS and Android) and any web components, as updated from time to time.

1.2 "**League Night**" means any pickleball league session run by the Club and managed through the App.

1.3 "**Gross League-Night Fees**" means the total amount payable by participating players for a League Night (number of players checked in for that night × the per-player fee for that night), as recorded in the App.

1.4 "**Service Fee**" means the fee payable by the Club to NextUp, as set out in Schedule 1.

1.5 "**Schedule**" means a schedule to this Agreement, including Schedule 1 (Commercial Terms).

2. Services and Licence

2.1 NextUp grants the Club a non-exclusive, non-transferable licence to use the App to manage its League Nights during the term of this Agreement.

2.2 NextUp will provide the App on a reasonable-efforts basis. NextUp does not warrant uninterrupted or error-free operation, and the App is provided "as is" save as expressly stated in this Agreement.

2.3 NextUp will provide reasonable support directly to the Club, which holds NextUp's direct contact details, and will use reasonable efforts to address material issues affecting the Club's League Nights.

2.4 NextUp may update, improve or modify the App at its discretion, provided it does not materially reduce the core functionality the Club relies on for League Nights.

3. Exclusivity

3.1 During the term of this Agreement, the Club will run **all** of its pickleball league nights through the App, and will not use any competing platform or system to manage league nights.

3.2 Nothing in this Agreement restricts NextUp from providing the App to any other club, league or organisation.

4. Fees, Collection and Payment

4.1 In consideration for access to the App, the Club will pay NextUp the Service Fee set out in Schedule 1.

4.2 **Collection.** The Club collects League-Night fees directly from players. The Club then remits the Service Fee to NextUp in accordance with this clause and Schedule 1.

4.3 Reconciliation from App data. The Gross League-Night Fees for each League Night are determined by the data recorded in the App (players checked in × per-player fee). NextUp will generate a monthly statement from the App data setting out the League Nights in the relevant period and the Service Fee due. This App-derived statement is the agreed basis for the amount owing, save in the case of a manifest error notified by the Club within 7 (seven) days of the statement.

4.4 Invoicing and payment. NextUp will issue an invoice on the 1st (first) day of each month for the Service Fee accrued in the **previous** calendar month. The Club will pay each invoice within 7 (seven) days of the invoice date by electronic funds transfer to the account nominated by NextUp.

4.5 VAT. The Service Fee is inclusive of Value-Added Tax (VAT), if any.

4.6 Late payment. Amounts not paid when due may bear interest at the maximum rate permitted by law from the due date until paid. Persistent late payment is a material breach for the purposes of clause 8.

5. Fee Review and Renegotiation

5.1 The Parties acknowledge that the Service Fee reflects the current state of the App and that the App's capabilities will grow over time.

5.2 NextUp may initiate a review of the Service Fee upon (or in anticipation of) the delivery of material new functionality, including but not limited to:

(a) DUPR integration; (b) club rankings; (c) tournament handling; (d) in-app purchases / payments; and (e) any Club-specific features developed at the Club's request.

5.3 The list in clause 5.2 is not exhaustive. NextUp may raise a Service Fee review at its discretion where it has delivered meaningful additional value to the Club.

5.4 A review is conducted in good faith. Any change to the Service Fee takes effect only once both Parties sign a replacement **Schedule 1**. Until a replacement Schedule 1 is signed, the existing Service Fee continues to apply.

5.5 If the Parties cannot agree a revised Service Fee, the existing Service Fee continues and either Party may terminate under clause 8.1.

6. Intellectual Property

6.1 NextUp owns, and retains, all intellectual property rights in and to the App, including all software, designs, content, data structures and any features developed during this

Agreement (including Club-specific features), whether or not funded or requested by the Club.

6.2 The Club receives only the licence to use the App set out in clause 2.1. No other rights are granted, whether by implication or otherwise.

7. Confidentiality

7.1 Each Party will keep confidential any non-public information of the other Party disclosed in connection with this Agreement, and will use it only for the purposes of this Agreement.

7.2 This clause does not apply to information that is or becomes public other than through breach, or that a Party is required to disclose by law.

8. Term and Termination

8.1 This Agreement runs on a **month-to-month** basis from the Effective Date. Either Party may terminate for any reason on **30 (thirty) days'** written notice.

8.2 Either Party may terminate immediately on written notice if the other commits a material breach that is not remedied within 14 (fourteen) days of written notice requiring remedy.

8.3 On termination, the Club's licence to use the App ends and the Club will pay any Service Fee accrued up to the termination date.

9. Limitation of Liability

9.1 Neither Party is liable to the other for any indirect, incidental, special or consequential loss, or for loss of profit, revenue, goodwill or data.

9.2 NextUp's total aggregate liability under this Agreement is limited to the total Service Fees paid by the Club to NextUp in the **3 (three) months** immediately preceding the event giving rise to the claim.

9.3 Nothing in this Agreement limits liability that cannot be limited by law.

10. General

10.1 Whole agreement. This Agreement and its Schedules are the entire agreement between the Parties on this subject and replace any prior understanding.

10.2 Variation. No variation is effective unless in writing and signed by both Parties. A replacement Schedule 1 signed by both Parties varies the commercial terms without affecting the rest of this Agreement.

10.3 Assignment. Neither Party may cede or assign its rights or obligations without the other's written consent, save that NextUp may cede its rights to a related company or a successor of its business.

10.4 Governing law. This Agreement is governed by the laws of the Republic of South Africa, and the Parties submit to the jurisdiction of the South African courts.

10.5 Notices. Notices must be in writing and sent to the addresses (or email addresses) set out below or as updated in writing.

Signatures

For NextUp Sport (Pty) Ltd

Signature: _____

Name: Luke Renton

Title: Chief Executive Officer / Director

Date: _____

For Northcliff Eagles

Signature: _____

Name: Paul Goldhawk

Title: Owner

Date: _____

SCHEDULE 1: COMMERCIAL TERMS

This Schedule forms part of, and is governed by, the Services Agreement between NextUp Sport (Pty) Ltd and Northcliff Eagles.

Version: 1.0 Effective from: 04/06/2026

Item	Terms
Service Fee	10% (ten percent) of Gross League-Night Fees, inclusive of VAT (if any).
Worked example	A League Night at R50 per player with 10 players = R500 Gross League-Night Fees. Service Fee = R50.
Revenue base	League-night fees only. Membership, coaching, merchandise and other club revenue are excluded unless added by a replacement Schedule 1.
Collection	Club collects fees from players directly and remits the Service Fee to NextUp.
Basis of calculation	App-recorded data (players checked in × per-player fee per League Night).
Invoicing	NextUp invoices on the 1st of each month for the prior calendar month.
Payment terms	Within 7 (seven) days of invoice date, by EFT to NextUp's nominated account.
Banking details	Communicated directly to the Club by NextUp.

Signed for and on behalf of each Party:

NextUp: _____ Club: _____ Date: _____